EDU TERIA

लेखनी 3.0

72nd BPSC MAINS
ANSWER WRITING PROGRAM

Hindi/English | Offline/Online

Instructions :

- The figures in the margin indicate full marks.
- All questions are compulsory.
- Candidates are required to give their answer in their own words as far as possible.
- All questions have been printed in both Hindi and English. In case of any ambiguity in Hindi version, the English version shall be considered authentic.

अनुदेश :

- उपान्त के अंक पूर्णांक के द्योतक हैं।
- सभी प्रश्न अनिवार्य हैं।
- परीक्षार्थी यथासम्भव अपने शब्दों में ही उत्तर दें।
- सभी प्रश्न हिन्दी और अंग्रेजी दोनों भाषा में छपे हैं। यदि हिन्दी भाषा में कोई संदेह हो, तो अंग्रेजी भाषा को ही प्रमाणिक माना जाएगा।

Section	Marks Obtained
SECTION-I	
SECTION-II	
Total Marks	

Name : .....

Father's Name : .....

State : ..... District : .....

BPSC Roll No.....

Medium : ..... Date : .....

Test Subject Name : .....

Centre Name : .....

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Mentors Name

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Head Evaluator
Stamp & Signature

Our Test Centre

Patna Boring Road Mob. 9031053260	Patna NIT More Mob. 7323000076	Dinkar Golamber Mob. 7322004164	
Musallahpur Hat Mob. 7250740458	Saharsa City Mob. 7808700015	Bettiah Centre Mob. 9430052874	
Gaya Mob. 8252507118	Purnia Mob. 8092086324	Bihar Sharif Mob. 7004382832	Samastipur Mob. 8407093072
Ara Center Mob. 7255092722	Muzaffarpur Mob. 7707093072, 8210832243	Sitamarhi Centre Mob. 9507727230	
Motihari Mob. 9430052874	Sasaram Mob. 8084994876	Bhagalpur Mob. 9431690496	Darbhanga Mob. 9507506233
Delhi Mukherjee Nagar Mob. 8603855800	Delhi Karol Bagh Mob. 9870288703	Delhi Wazirabad Mob. 7042495007	

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Overall Performance

Need To Improve (Below 30% Marks)	Satisfactory (30-40% Marks)	Good (40-50% Marks)	Very Good (Above 50% Marks)	Meet/Call To Mentor

Mentor's Overall Comment

Section-I	
Section-II	

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SECTION - I

Ans 1(a). Process of Amendment of the Constitution

Article 368 (Part XX) empowers Parliament to amend the Constitution. The framers balanced rigidity and flexibility (Nehru: "not as rigid as to be static"). Three methods exist:

- **Simple majority** (outside Art. 368): admission or formation of new states (Art. 2, 3), Legislative Councils (Art. 169), Fifth and Sixth Schedules, citizenship, official language.
- **Special majority**: majority of the total membership + 2/3 of members present and voting in each House. Applies to Fundamental Rights, DPSP and most other provisions.
- **Special majority + ratification by at least half of the State legislatures**: for federal features, e.g. election of the President, Seventh Schedule, Supreme Court and High Courts, representation of states in Parliament and Art. 368 itself.

Procedure: Bill can be introduced only in Parliament (not in states); no joint sitting for deadlock; the President must give assent (24th Amendment, 1971). Limit: Kesavananda Bharati (1973) - Parliament cannot alter the Basic Structure.

Ans 1(b). "Bag of Borrowings" - Originality of the Constitution

Critics (e.g. Sir Ivor Jennings) called it a patchwork / bag of borrowings because many features were taken from other countries and the Government of India Act, 1935 (nearly 250 articles).

Source	Feature borrowed
UK	Parliamentary system, Rule of law, Single citizenship
USA	Fundamental Rights, Judicial review, Impeachment
Ireland	DPSP, Nomination to Rajya Sabha

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Source	Feature borrowed
Canada	Federation with strong Centre, Residuary powers
Australia	Concurrent list, Joint sitting
Weimar (Germany)	Suspension of FRs in Emergency
USSR / France	Fundamental Duties / Republic, Liberty-Equality-Fraternity

Why it is original, not a copy (Dr. Ambedkar: borrowing is no crime; the only new things are variations to suit India's needs):

- Universal Adult Franchise from day one, even for an illiterate and poor population.
- Synthesis of FRs and DPSP = political democracy with social and economic democracy; unique positive affirmative action (Art. 15(4), 16(4)) and abolition of untouchability (Art. 17).
- Quasi-federal design - "Union of States", flexible-rigid amendment, single integrated judiciary, Panchayati Raj and Emergency provisions. Basic Structure is an Indian judicial invention.

Hence it is a creative adaptation, tested to Indian diversity - the world's longest written constitution.

Ans 1(c). Article 19 - Freedoms, Limitations and Why in News

Art. 19(1) gives six freedoms to citizens only (right to property (f) was deleted by the 44th Amendment, 1978):

Clause	Freedom	Ground of restriction
19(1)(a)	Speech and expression	Art. 19(2)
(b)	Assemble peaceably, without arms	19(3) - public order
(c)	Form associations, unions, co-operatives	19(4)
(d), (e)	Move freely, reside and settle	19(5) - public / ST interest
(g)	Practise any profession, trade, business	19(6)

Limitations: only reasonable restrictions on grounds of sovereignty and integrity of India, security of the State, friendly relations with

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foreign states, public order, decency or morality, contempt of court, defamation and incitement to an offence; judicially reviewable (proportionality). These freedoms are available against the State only. Why in discussion recently: social-media speech and arrests for posts, internet shutdowns (Anuradha Bhasin, 2020), hate speech, Shreya Singhal (2015) striking down Sec. 66A IT Act, Kaushal Kishor (2023) - no extra restrictions beyond Art. 19(2), colonial sedition law replaced by BNS Sec. 152, and protests / right to assemble. Balance between liberty and order is the core debate.

Ans 1(d). Fundamental Rights and their Significance

Part III (Art. 12-35) guarantees justiciable rights; called the "Magna Carta of India". Six categories:

Right	Articles
Right to Equality	Art. 14 - 18
Right to Freedom	Art. 19 - 22 (incl. 21, 21A)
Right against Exploitation	Art. 23 - 24
Right to Freedom of Religion	Art. 25 - 28
Cultural and Educational Rights	Art. 29 - 30
Right to Constitutional Remedies	Art. 32 ("heart and soul" - Ambedkar)

Significance:

- Protect individual liberty and dignity against arbitrary State action; Art. 13 gives judicial review.
- Foundation of democracy and Rule of law; protect minorities (Art. 29-30) and weaker sections (Art. 15, 17, 23).
- Evolving: Art. 21 expanded - Maneka Gandhi (1978), right to privacy - Puttaswamy (2017), education - Art. 21A.
- Not absolute: reasonable restrictions, Art. 33, suspension in Emergency (Art. 359; Art. 20, 21 never suspended).

Economic link: Right to trade and livelihood (Art. 19(1)(g)) protects

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entrepreneurship and market freedom.

Ans 1(e). Uniform Civil Code (UCC)

Definition: A common set of secular civil laws governing personal matters - marriage, divorce, adoption, inheritance, succession, maintenance and guardianship - applicable to all citizens irrespective of religion. Mentioned in Art. 44 (DPSP): "State shall endeavour to secure a UCC throughout the territory of India."

Efforts so far: Shah Bano (1985), Sarla Mudgal (1995) - SC urged the State to enact UCC; Shayara Bano (2017) - triple talaq void; Goa has a common code; Uttarakhand UCC Act, 2024 (first state after independence); Law Commission consultations (2018, 2023).

Efforts required to make it effective:

- Broad consensus: dialogue with all religious communities, women's groups and tribal bodies.
- Gradual, gender-just codification - start with reform of discriminatory personal laws; draft by Law Commission.
- Protect tribal customs (Sixth Schedule, Art. 371) and balance with Art. 25-26 (religious freedom).
- Political will, legal awareness and a uniform Centre-State approach.

Ans 2. Preamble - Nature, Principles, Status and Limitations

Introduction

The Preamble, based on Nehru's Objectives Resolution (13 Dec 1946) and adopted on 26 Nov 1949, is the "identity card / key-note" of the Constitution (Ernest Barker). It begins with "We, the People of India" - the source of authority.

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A. Nature and fundamental principles of governance

SOVEREIGN Internal+External	SOCIALIST 1976 (42nd)	SECULAR 1976 (42nd)	DEMOCRATIC Popular rule
REPUBLIC Elected head	JUSTICE Social, Eco, Pol.	LIBERTY Thought, Belief...	EQUALITY + FRATERNITY

- Sovereign: India is free from external control; decides internal and external affairs (membership of UN / Commonwealth does not affect it).
- Socialist: democratic socialism, mixed economy and welfare state (D.S. Nakara, 1983) - reduce inequality of income and status; post-1991 reforms keep welfare through MGNREGA, NFSA.
- Secular: no State religion; equal respect to all religions (Art. 25-28) - S.R. Bommai (1994).
- Democratic: political (universal franchise), social and economic democracy; Republic: head of State elected, no hereditary privilege.
- Justice, Liberty, Equality, Fraternity (dignity of individual and unity and integrity of the nation) - France / Russian ideals, linked to FRs, DPSP and Fundamental Duties.

Thus the Preamble reflects constitutionalism, Rule of law, welfare state, federal unity and separation of powers.

B. Constitutional status - Supreme Court judgements

Case	Held
Berubari Union (1960)	Key to framers mind, but NOT part of Constitution
Kesavananda Bharati (1973)	IS a part; amendable (Art. 368), not basic structure
LIC of India (1995)	Reiterated - integral part of Constitution
S.R. Bommai (1994)	Secularism is part of basic structure
Balram Singh (Nov 2024)	Socialist, Secular valid; Preamble amendable

The Preamble has been amended only once - 42nd Amendment, 1976 (added Socialist, Secular and Integrity). Amendment cannot destroy

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the basic features of the Preamble.

C. Limitations of the Preamble

- It is non-justiciable - cannot be directly enforced in a court of law.
- It is neither a source of power for the legislature nor a prohibition / limitation on its powers; specific articles prevail over the Preamble in case of conflict.
- Some terms such as socialist and secular are undefined / vague and open to varied interpretation; it lacks any mention of duties.

Conclusion

The Preamble is the soul of the Constitution - a guide for interpretation, a statement of constitutional morality and the vision of a just, equal and fraternal India. Its limits make the Constitution - not the Preamble - the real source of power. Judicial wisdom has kept its spirit alive.

Ans 3. Fundamental Rights and DPSP - Conflict and Harmony

Introduction

Part III (FRs) and Part IV (DPSP, Art. 36-51) are the "conscience of the Constitution" (Granville Austin) - together the "two wheels of a chariot". FRs create political democracy; DPSP create social and economic democracy. Courts have shifted from conflict to harmony.

Basis	Fundamental Rights	DPSP
Nature	Negative - limit the State	Positive - direct the State
Enforceability	Justiciable (Art. 32, 226)	Non-justiciable (Art. 37)
Goal	Political democracy	Social + economic democracy
Source	USA (Bill of Rights)	Ireland

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A. Conflict (21 marks)

Conflict arose when land reform / welfare laws were challenged as violating FRs (property - Art. 19(1)(f), 31):



- State of Madras v. Champakam Dorairajan (1951): in case of conflict, FRs prevail; DPSP are subsidiary. Parliament responded with the 1st Amendment (Art. 15(4), land reform, 9th Schedule).
- Golaknath (1967): FRs cannot be amended by Parliament. 24th and 25th Amendments (1971) restored power and inserted Art. 31C : laws to give effect to Art. 39(b), (c) cannot be challenged under Art. 14, 19.
- Kesavananda Bharati (1973): Art. 31C upheld, but the bar on judicial review struck down; Basic Structure doctrine.
- 42nd Amendment (1976) extended Art. 31C to all DPSP - struck down in Minerva Mills (1980): the Constitution is founded on the bedrock of balance between Part III and Part IV; absolute primacy to either destroys the basic structure.
- Recent: Property Owners Association v. State of Maharashtra (2024, 9-judge bench) - Art. 39(b) does not automatically cover all private property as "material resources of the community"; FR of property (Art. 300A) and welfare must be balanced.

B. Harmony (17 marks)

- Minerva Mills (1980) and Unni Krishnan (1993): DPSP are complementary to FRs; fundamental in governance of the country (Art. 37).
- Art. 21 + DPSP: right to livelihood (Olga Tellis, 1985 - Art. 39(a), 41); free legal aid (Hussainara Khatoon, 1979 - Art. 39A); clean

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environment (M.C. Mehta - Art. 48A); health.

- Art. 14 + Art. 39(d): equal pay for equal work (Randhir Singh, 1982). Education: Art. 45 -> Art. 21A (86th Amendment, 2002).
- Legislation: MGNREGA 2005 (Art. 41), NFSA 2013 (Art. 47), Panchayati Raj - Art. 40, 73rd Amendment; Art. 15(3), 15(4), 16(4) support social justice.
- DPSP guide the courts in interpretation of reasonable restrictions under Art. 19.

Conclusion

The conflict has become harmonious construction: FRs are the means, DPSP the goals. A balance between individual liberty and social welfare - the basic structure - ensures a welfare state with constitutional morality (Ambedkar).

SECTION - II

Ans 4. Hospital Data (Table 1)

Total patients per Department (Female F + Male M = Sum of Specialized Care + Cured + Improved + Referred):

Department	F	M	Total
Cardiology	4+19+10+4 = 37	2+17+8+6 = 33	70
General Medicine	0+24+10+4 = 38	3+26+8+5 = 42	80
Neurology	3+10+5+0 = 18	3+9+4+1 = 17	35
Orthopedic	1+15+6+1 = 23	1+15+7+5 = 28	51
Pediatrics	0+16+12+4 = 32	1+18+8+5 = 32	64
Total	**148**	**152**	**300**

(a) Highest % of female patients

% Female = (Female / Total of dept.) x 100

- Cardiology = 37/70 x 100 = 52.86% General Medicine = 38/80 =

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47.50%

- Neurology = 18/35 = 51.43% Orthopedic = 23/51 = 45.10%

Pediatrics = 32/64 = 50.00%

Ans: Cardiology (52.86%) - highest % of females.

(b) Ratio of Neurology : Cardiology among male patients

Male Neurology = 3+9+4+1 = 17; Male Cardiology = 2+17+8+6 = 33

Ans: Ratio = 17 : 33

(c) Departments with more than 1/4 of total admissions - each gender

- Female: total = 148; 1/4 of 148 = 37. Departments with more than 37: General Medicine = 38 (>37). Cardiology = 37 is exactly 1/4, not more.
- Male: total = 152; 1/4 of 152 = 38. Departments with more than 38: General Medicine = 42 (>38). Cardiology 33, Orthopedic 28, Pediatrics 32, Neurology 17 are less.

Ans: General Medicine (both Female and Male).

(d) Highest ratio of Specialized Care : Cured (Male + Female combined)

Department	Sp. Care (F+M)	Cured (F+M)	Ratio	Value
Cardiology	4+2 = 6	19+17 = 36	6/36 = 1/6	0.167
General Medicine	0+3 = 3	24+26 = 50	3/50	0.060
Neurology	3+3 = 6	10+9 = 19	6/19	0.316
Orthopedic	1+1 = 2	15+15 = 30	2/30 = 1/15	0.067
Pediatrics	0+1 = 1	16+18 = 34	1/34	0.029

Ans: Neurology (6 : 19 = 0.316) has the highest ratio.

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(e) Cardiology - changed data

New values: Female Specialized Care = 4+1 = 5; Female Cured = 19+1 = 20; Male Specialized Care = 2 (same); Male Cured = 17-1 = 16.

- Female ratio = Specialized Care : Cured = 5 : 20 = 1 : 4 (0.25)
- Male ratio = 2 : 16 = 1 : 8 (0.125)

Ans: Female = 1 : 4; Male = 1 : 8.

Ans 5. Exports of Companies X, Y, Z (Rs. in 000 crore)

Values read from the line graph:

Year	2011	2012	2013	2014	2015	2016	2017	Total
X	60	40	40	80	100	60	130	510
Y	80	100	120	90	70	100	140	700
Z	20	60	60	70	60	80	100	450
Total	160	200	220	240	230	240	370	**1660**
Avg (Total/3)	53.33	66.67	73.33	80	76.67	80	123.33	

Average annual exports (over 7 years): X = 510/7 = 72.86; Y = 700/7 = 100; Z = 450/7 = 64.29

(a) Average of X and Y as % of average of Z

% for X = (Avg X / Avg Z) x 100 = (510/450) x 100 = 113.33%

% for Y = (Avg Y / Avg Z) x 100 = (700/450) x 100 = 155.56% (7 years cancel out)

Ans: X = approx. 113%; Y = approx. 156% of Z.

(b) Difference between maximum and minimum average annual export over the years

Average annual export of the companies (year-wise) = Total / 3 (see table). Maximum = 2017: 370/3 = 123.33; Minimum = 2011: 160/3 =

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53.33.

Difference = 123.33 - 53.33 = 70 (i.e. 210/3)

Ans: Rs. 70 thousand crore (Rs. 70,000 crore).

(c) Years when the average annual exports of the companies were same

Year-wise averages: 53.33, 66.67, 73.33, 80, 76.67, 80, 123.33 (totals 240 in 2014 and 2016).

Ans: 2014 and 2016 (average = Rs. 80 thousand crore).

(d) Years when Z exceeded the average annual exports of all companies

Combined average annual export of all companies = 1660 / (3 x 7) = 1660/21 = 79.05 (per company per year).

Z's export > 79.05 in: 2016 (80) and 2017 (100). In other years Z = 20, 60, 60, 70, 60 (all less).

Ans: 2016 and 2017.

Note: if compared with the same year's average of all three companies (table), Z is below it in every year (2016: Z = 80 = average 80, not more).

(e) % increase in total exports, 2015-2017 over 2011-2014

Total 2015-17 = 230 + 240 + 370 = 840. Total 2011-14 = 160 + 200 + 220 + 240 = 820.

% increase = (840 - 820) / 820 x 100 = 20/820 x 100 = 2.44%

Ans: Approx. 2.44% increase.

Note: per-year average rises from 205 (820/4) to 280 (840/3), i.e. about 36.6%, since the period 2015-17 is of 3 years vs 4 years.

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